ORAL ARGUMENT NOT YET SCHEDULED

No. 25-3041

UNITED STATES COURT OF APPEALS
FOR THE DISTRICT OF COLUMBIA CIRCUIT

UNITED STATES OF AMERICA,

Appellee,

v.

DAN EDWIN WILSON,

Appellant.

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

Cr. No. 23-427 (DLF)

BRIEF FOR THE UNITED STATES

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CERTIFICATE OF PARTIES, RULINGS, AND RELATED CASES

Pursuant to D.C. Circuit Rule 28(a)(1), appellee hereby states as follows:

Parties and Amici

The parties to this appeal are appellant Dan Edwin Wilson and appellee the United States of America. On July 3, 2025, this Court appointed Alexander Cave as amicus curiae to present arguments in support of the district court's March 13, 2025, memorandum opinion and order denying Wilson's 28 U.S.C. § 2255 motion.

Rulings Under Review

This is an appeal from an order by the Honorable Dabney L. Friedrich denying Wilson's § 2255 motion.

Related Cases

Appellee is unaware of any related cases.

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ISSUE PRESENTED

Whether the district court erred when it concluded that Wilson's offenses were not covered by President Trump's pardon of "individuals convicted of offenses related to events that occurred at or near the United States Capitol on January 6, 2021."

STATEMENT OF THE CASE

A. Procedural History

In June 2022, while investigating appellant Dan Wilson's involvement in the January 6, 2021, attack on the United States Capitol, law enforcement agents executed a search warrant at Wilson's home in the Western District of Kentucky (see Document (Doc.) 1-1 (Statement of Facts in support of Criminal Complaint) at 5-6; Doc. 59 (Statement of Offense) at 9-10).[1] Among other things, the agents found six firearms, which Wilson was prohibited from possessing as a result of his previous felony convictions (Doc. 1-1 at 5-6; Doc. 59 at 9-10).

Wilson later entered a plea agreement in which he agreed to plead guilty to conspiracy to impede or injure an officer, in violation of 18 U.S.C. § 372; possession of a firearm by a prohibited person, in violation of 18 U.S.C. §§ 922(g)(1) & 924(a)(2); and possession of an unregistered firearm, in violation of 26 U.S.C. §§ 5841, 5861(d), & 5871 (Doc. 56 (plea agreement) at 1). The first charge arose from Wilson's

[1] "Doc. __" refers to the district court docket number for Case No. 23-cr-427 (D.D.C.).

conduct leading up to and during the events of January 6, 2021 (Doc. 59 at 1-9). The latter two charges arose from the firearms found in Wilson's home (id. at 9-10). As part of his plea agreement, Wilson agreed to have those charges transferred from the Western District of Kentucky to the District of Columbia under Federal Rule of Criminal Procedure 20(a) (id.).

Wilson pleaded guilty on May 17, 2024 (5/17/24 Transcript (Tr.) 35-36). On August 28, 2024, the Honorable Dabney L. Friedrich sentenced Wilson to concurrent terms of 60 months in prison on each count, to be followed by three years of supervised release (8/28/24 Tr. 63-64). Wilson did not appeal.

On January 20, 2025, President Trump issued a presidential proclamation granting "a full, complete and unconditional pardon to . . . individuals convicted of offenses related to events that occurred at or near the United States Capitol on January 6, 2021." Proclamation No. 10887, 90 Fed. Reg. 8331 (Jan. 29, 2025). The proclamation excluded fourteen people from the pardon's scope—Wilson was not one of them. *Id.* The pardon's purpose, the President said, was to end a "grave national injustice" and begin a "process of national reconciliation." *Id.* To ensure the full and expeditious implementation of the proclamation, the President delegated to the Attorney General the responsibility to "administer and effectuate the immediate issuance of certificates of pardon to all individuals described [in the pardon]." *Id.* Wilson received a certificate of pardon from the Department of Justice informing him

that he had been "pardoned by the Presidential Proclamation of January 20, 2025," and stating that the pardon covered his "convictions for offenses related to events that occurred at or near the United States Capitol on January 6, 2021" (Doc. 110, Exhibit A).

Shortly after the President issued his proclamation, Wilson was released from custody by the Bureau of Prisons. *United States v. Wilson*, 2025 WL 1009047, at *1 (D.D.C. Mar. 13, 2025). The Bureau of Prisons subsequently sought to have Wilson return to custody, prompting Wilson to move for a stay of any order requiring his reincarceration (Doc. 100). The district court granted a stay and ordered the government to "file a brief, with supporting legal authority, that sets forth its position as to why the Court should not order the defendant to self-report to the Federal Bureau of Prisons to serve the remainder of his sentence on the firearms offenses, which are unrelated to the defendant's criminal conduct on January 6, 2021" (2/3/25 Minute Order).

B. The District Court's Order Denying Wilson's § 2255 Motion

On March 13, 2025, the district court entered an order denying Wilson's 28 U.S.C. § 2255 motion. *See United States v. Wilson*, 2025 WL 1009047, at *9 (D.D.C. Mar. 13, 2025). In the accompanying opinion, the court determined that, for an offense to fall within the President's pardon, "it must be tethered to a specific time—January 6, 2021—and place—at or near the U.S. Capitol." *Id.* at *4. The court concluded that,

"[b]ecause Wilson did not use the firearms he possessed in Kentucky when he conspired to impede and injure officers at the Capitol on January 6, 2021, his firearm convictions are not covered by the Presidential Pardon." *Id.*

SUMMARY OF ARGUMENT

The pardon at issue in this case reaches any conviction or charged conduct that is "related to the events that occurred at or near the United States Capitol on January 6, 2021." That language is not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. In the context of President Trump's intent that the pardon will end a "grave national injustice" and begin a "process of national reconciliation," the pardon's remedial purpose will not be achieved if people subjected to January 6-related investigations continue to be prosecuted for certain in-home offenses that would not have been discovered but for those investigations. Wilson's firearms offenses were just such offenses, and thus the Department of Justice reasonably concluded that the pardon covers them.

ARGUMENT

I. The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon.

The President's proclamation provided, as relevant, that the pardon reaches any conviction or charged conduct that is "related to the

events that occurred at or near the United States Capitol on January 6, 2021." 90 Fed. Reg. at 8331. That language is plainly not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. The words "relate[d] to" in their "normal sense" have a "broad common-sense meaning" that potentially reaches anything having "a connection with" the related-to events. *Ingersoll-Rand Co. v. McClendon*, 498 U.S. 133, 139 (1990). So when construing "language including the phrase 'relat[ed] to,'" courts "typically read the relevant text expansively." *Lamar, Archer & Cofrin, LLP v. Appling*, 584 U.S. 709, 717 (2018). How expansively depends on the "context." *Dubin v. United States*, 599 U.S. 110, 119 (2023) ("That the phrase ['relate to'] refers to a relationship or nexus of some kind is clear. Yet the kind of relationship required, its nature and strength, will be informed by context." (internal citation omitted)).

The relevant context—as provided in the proclamation itself—is President Trump's intent that the pardon will end a "grave national injustice" and begin a "process of national reconciliation." 90 Fed. Reg. at 8331; *see also The Buena Ventura*, 175 U.S. 384, 394 (1899) (declining to give a cramped construction to a presidential proclamation on the ground that the President "never intended it"). The proclamation's remedial purpose will not be achieved if people subjected to January 6-related investigations continue to be prosecuted for certain in-home offenses that would not have been discovered but for those investigations. Whether an offense falls within the scope of this

remedial purpose—and thus is "related to" the events at the Capitol on January 6—involves a fact-intensive and case-specific inquiry.

Here, the Department has determined that there is no sound reason to believe that Wilson's possession of firearms at his home, while being a prohibited person, would have been discovered in any way other than as the unexpected byproduct of executing a search warrant seeking evidence related to Wilson's conduct at the U.S. Capitol on January 6. For example, there was no victim or witness who feasibly would have reported this offense to the authorities, nor any investigation unrelated to the events of January 6, 2021, that might have otherwise uncovered it.

In sum, the Department has concluded that were it not for Wilson's involvement in "the events that occurred at or near the United States Capitol on January 6, 2021," 90 Fed. Reg. at 8331, his firearms offenses would not have come to light, let alone been prosecuted. His convictions are sufficiently "related to" those events to fall within the pardon's scope as described in the presidential proclamation's text.

In reviewing the Department's reading of the President's pardon, "deference should be accorded to an executive agency's interpretation of an executive order it is charged with administering," including in the context of a pardon. *Andrews v. Warden*, 958 F.3d 1072, 1078 (11th Cir. 2020). As the Eleventh Circuit has observed, "deference to an agency's interpretation is sensible in this context, where a court cannot even review a pardon that a recipient has not presented to it." *Id.* (citing

United States v. Wilson, 32 U.S. 150, 161-63 (1833)). And as the Fourth Circuit has recognized, the Judicial Branch's role with respect to pardons is quite limited. *See Rosemond v. Hudgins*, 92 F.4th 518, 525-26 (4th Cir. 2024). Because the Department's position on the pardon is reasonable, it warrants deference. *Andrews*, 958 F.3d at 1078.

CONCLUSION

WHEREFORE, the government respectfully submits that the District Court's order denying Wilson's § 2255 motion should be reversed.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY pursuant to Fed. R. App. P. 32(g) that this brief contains 1,505 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f) and D.C. Circuit Rule 32(e)(1), and therefore complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B). This brief has been prepared in 14-point TeX Gyre Schola, a proportionally spaced typeface.

/s/ Daniel J. Lenerz
DANIEL J. LENERZ
Assistant United States Attorney

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have caused a copy of the foregoing Brief for Appellee to be served by electronic means, through the Court's CM/ECF system, upon counsel for appellant, Carolyn Stewart, Esq., Stewart Country Law PA, Plant City, FL 33567, and upon court-appointed amicus curiae, Alexander J. Cave, Covington & Burling LLP, One CityCenter, 850 Tenth Street NW, Washington, DC 20001, on this 20th day of October, 2025.

/s/ Daniel J. Lenerz
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